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## U.S. Department of State Diplomacy in Action

### Central African Republic

Bureau of Democracy, Human Rights, and Labor

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The Central African Republic (CAR) is a constitutional republic whose population of approximately 3.9 million is governed by a strong executive branch and weak legislative and judicial branches. In March and May, the country held two rounds of multiparty presidential and legislative elections that ended two years of transitional rule by General Francois Bozize, who seized power in a 2003 military coup and declared himself president. The voting resulted in the election of Bozize, the country's former armed forces chief of staff, as president. National and international observers judged the elections to be generally free and fair and representative of the people's will, despite irregularities and accusations of fraud by candidates running against Bozize. The National Convergence Movement ("Kwa Na Kwa")--a grouping of smaller parties, military officials, and political leaders supporting Bozize--won the largest number of seats in the National Assembly. During the year lawlessness persisted in large swaths of the country, particularly in the north and northwest; the government and citizens were significantly affected by insecurity and the threat of conflict. The government and multinational regional forces deployed soldiers to fight banditry in northern areas of the country. Civilian authorities did not maintain effective control of security forces.

The government's human rights record remained poor; although the government's respect for human rights improved overall, serious problems remained in several areas. Compared with the country's human rights situation in 2004, political rights and press freedom increased significantly during the year, while freedom of movement deteriorated markedly because of actions by security forces and unidentified armed groups. There was an increase in arbitrary arrest and detention, particularly around the time of national elections. Several developments during the year adversely influenced the human rights situation, including the growth of salary arrears owed to government workers (which contributed to corruption) and an increase in attacks by unidentified armed groups, which resulted in the disruption of agricultural production and exodus of approximately 15 thousand refugees from the north and west, where the government did not exercise authority. Severe flooding in August displaced thousands of families, and an increase in the HIV/AIDS prevalence rate led many individuals to blame HIV/AIDS-related deaths of family members on witchcraft and to commit violations--including killings--against persons accused of casting deadly spells. In addition acute malnutrition reportedly reached 14 percent in some areas of the country, and the UN Development Program estimated that 95 percent of the population lived on less than \$1 (546 CFA francs) a day, up from 67 percent in 2000. During the year the following human rights problems were reported:

- extrajudicial killings by security forces, particularly the Central Office for the Repression of Banditry (OCRB)
- kidnappings by armed groups
- torture, beatings, rape, and other abuses of suspects and prisoners by security forces
- impunity

- harsh prison and life-threatening detention center conditions
- arbitrary arrest and detention, political detainees, and prolonged pretrial detention
- denial of a fair trial and judicial corruption
- occasional restrictions on freedom of the press and assembly
- restrictions on freedom of movement
- government corruption and lack of access to information
- societal violence, including female genital mutilation (FGM), and discrimination against women
- societal discrimination against indigenous people (Pygmies)
- restrictions on workers' rights
- child labor and forced labor, including forced child labor

In addition to holding elections that observers judged to be generally free and fair, the government took significant steps to improve human rights during the year. In January the government began implementing a new constitution passed by referendum in December 2004, as well as a new, almost completely decriminalized press law providing for greater press freedom. The minister of justice launched a zero-tolerance policy against corruption, resulting in the suspension of four judges in July. The government also suspended three ministers accused of engaging in corruption. In addition, following an investigation ordered by the president, the government initiated disciplinary procedures to deal with approximately 1,700 fraudulent or "ghost" workers in the civil service who had been illegally collecting government paychecks.

Unidentified armed groups--thought to be common criminals and remnants of insurgency groups from previous conflicts, including former pro-Bozize combatants from Chad--continued to attack, rob, beat, and rape civilians and loot and burn villages in the north and west.

## **RESPECT FOR HUMAN RIGHTS**

### **Section 1 Respect for the Integrity of the Person, Including Freedom from:**

#### **a. Arbitrary or Unlawful Deprivation of Life**

There were no reports that the government or its agents committed politically motivated killings; however, security forces continued to commit executions and other extrajudicial killings with impunity throughout the year.

On a monthly basis during the year, the OCRB, a special antibanditry police squad, continued to arbitrarily execute suspected bandits without respecting the basic due process rights of the accused and was responsible for other extrajudicial killings and deaths resulting from torture. The OCRB, which normally operated only in and around Bangui, committed such abuses with tacit government support and popular approval, partly because the OCRB's actions were seen as an effective means of reducing crime.

The OCRB often apprehended suspected armed robbers, bandits, and thieves after conducting informal, undocumented investigations; transported them to Cattin, a town three miles southwest of Bangui; shot and killed them; and then used open-air jeeps to drive the dead bodies through town in broad daylight (to exhibit the dead as a deterrent to crime) before depositing the bodies at a morgue. The director of the OCRB, however, claimed he was not aware of any extrajudicial executions. The minister of the interior, who oversees the OCRB, and the minister of justice said that, while the OCRB killed suspects during the year, he believed that these killings occurred only after OCRB members were shot at by suspects attempting to evade apprehension.

On March 17, members of the OCRB arrested Yacoub Ibrahim in the Bangui neighborhood of Kilometre 5 for unknown reasons. OCRB members beat and killed him, and his family later recovered his body. No other details were available at year's end.

The government did not prosecute OCRB members responsible for killings or other abuses committed during the year. The minister of justice said that most parents of suspected criminals killed by the OCRB did not file complaints with the judicial system because of the social stigma associated with being related to accused criminals. The public prosecutor of the republic and UN officials, however, said they believed that many victims' families did not file complaints against the OCRB because of fear of retribution and the widespread belief that the OCRB enjoyed almost total impunity.

The head of the High Commission of Human Rights and Good Governance, situated in the office of the president, said that the OCRB continued to commit extrajudicial killings during the year because they were effective in deterring violent crime and were supported by the general public because there was a lack of confidence in the judicial system's ability to punish criminals. He said he believed the OCRB had never killed an innocent person.

The presidential security forces also arbitrarily executed citizens during the year.

In September a severely wounded and dying man was found in a bag in Bangui. Before dying, the victim reportedly said that Lieutenant Celestine Dogo and members of the presidential security forces were responsible for his injuries. No additional information was available by year's end.

During the year there were developments in a high-profile case involving the alleged abduction, torture, and killing of two men in September 2004 by then Lieutenant Dogo, the head of the presidential security forces at the time. Although President Bozize officially dismissed Dogo from the security forces in September 2004, following his arrest for suspected involvement in the killing, Dogo was released from detention at a military installation without explanation and remained free during the year, during which he reportedly threatened the life of the brother of one of the victims of the September 2004 killings. There were numerous credible reports during the year that Dogo continued to serve in the security forces despite his official dismissal and that he continued to commit violations against civilians; the government, however, denied these reports. The public prosecutor of the republic acknowledged the appearance of favoritism created by Dogo's release and said he was conducting a criminal investigation of Dogo. Six other members of the presidential security forces who were accused and arrested with Dogo remained in prison at year's end.

During the year there were credible reports that security forces committed other unlawful killings, some allegedly in connection with personal disputes or rivalries.

The government arrested some members of the military who allegedly killed persons during the year. By year's end government records from the second of two sessions held by the Permanent Military Tribunal during the year were unavailable; however, records from the first session indicated that the tribunal had heard a total of seven cases involving nine members of the military accused of committing killings. From those 7 cases, the tribunal convicted 5 individuals, including a sergeant, and sentences ranged from 5 to 20 years in prison. The tribunal acquitted one individual. One case involving three persons was deferred and still under investigation as of August.

By year's end no action had been taken against the members of security forces allegedly responsible for killing eight Chadian combatants in April 2004. There were no developments in the following killings in 2003, reportedly by security forces: the August killing of a student, the September killing of retired Gendarmerie Captain Joseph Koyanao, the September killing of a Nigerian trader, or the December executions of three boys in Haute Kotto.

During the year unidentified armed groups attacked and sometimes killed civilians during village raids and acts of highway banditry. For example armed groups attacked and reportedly killed several civilians in the Basse-Kotto prefecture town of Kolo in March and in three Ouham prefecture towns--Kadjema, Zere, and Bobo--between July 18 and August 12. Although information about these armed groups was difficult to obtain, aid workers and UN officials said they believed the armed groups were a mix of common criminals and remnants of insurgent groups from recurring conflicts in the region. Some human rights observers said they believed that many of the armed groups were comprised of the same rebels and

mercenaries, including Chadian ex-combatants, who helped Bozize seize power in the 2003 coup; these observers said that because Bozize had been unable to pay the ex-combatants what they considered a proper compensation after he seized power, the ex-combatants were collecting payments from civilians by force.

Civilians continued to take vigilante action against presumed thieves, poachers, and some persons believed to be Chadian combatants.

Mobs reportedly continued to kill and injure suspected sorcerers or witches during the year. For example in June seven residents of Bangui's Miskine suburb killed a woman they accused of being a witch. No additional information was available at year's end.

No action was taken against vigilantes responsible for killings committed in 2004.

#### b. Disappearance

There were no reports of politically motivated disappearances during the year. The government did not conduct investigations into the reported disappearances that occurred in 2003.

During the year unidentified armed groups conducted kidnappings of M'bororo children for ransom (see section 5).

#### c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

Although the Penal Code prohibits torture and specifies sanctions for those found guilty of physical abuse, police, including the OCRB, continued to torture, beat, and otherwise abuse criminal suspects, detainees, and prisoners. According to local human rights groups such as the Association Against Torture and the Central African Human Rights League (LCDH), prisons employed torture less frequently than in the previous year, although the OCRB reportedly tortured suspects more frequently. The government did not take effective action to punish police who tortured suspects, and impunity remained a problem. Family members of victims and human rights groups, including the LCDH, pursued court complaints filed since 2003 with the prosecutor regarding the deaths of several prisoners due to police abuse; however, authorities did not take action on any of the cases by year's end. The LCDH reported the abuse of civilians by the presidential security forces and filed court complaints of police abuse.

Police most commonly employed a form of torture known as *le cafe*, the repeated beating of the sole of an individual's feet with a baton or stick. Immediately after administering *le cafe*, police would sometimes force the individual to walk on badly bruised feet, and if the individual was unable to do so, police would beat the individual.

On January 28 former Lieutenant Dogo, accompanied by security forces members, severely beat Rufin Louango, an employee of a foreign embassy, in Bangui. The beating, which took place before several witnesses, was reportedly connected to a personal dispute and caused extensive injuries to Louango. No action was taken against Dogo by year's end.

On March 28, former Lieutenant Dogo, presidential security forces member Lieutenant Olivier Koudemon (alias Gbangouma), and a member of the armed forces named Aziz severely beat three young individuals--Charlemagne Zamelo and Gauthier and Serge Langandji--in Bangui, following an arbitrary nighttime search of their home that uncovered nothing illegal.

On June 21, Lieutenant Anatole of the presidential security forces stopped and severely beat taxi driver Ndaye Armand in the Bangui neighborhood of Kilometre 5 after Armand did not yield to him in traffic. No additional information was available at year's end.

In a high-profile incident on October 4, police arrested and beat Jean-Michel Mandaba, deputy secretary of former president Patasse's Central African People's Liberation Movement (MLPC), and Joseph-Tchendo, president of the country's media regulatory body, in Bangui. Police reportedly arrested the two men for holding a political meeting with the goal of destabilizing the government; they were released after several hours of detention, and at year's end an investigation was ongoing. A group of parliamentarians, as well as the LCDH, condemned the arrest and violence and demanded more information. By year's end parliamentarians had questioned the Ministry of the Interior, but no official actions had been taken against the police responsible for the beating.

On October 16, Lieutenant Koudemon assaulted and seriously wounded civilian Louis Francis Koteke in a Bangui bar-restaurant. In November a Bangui court sentenced Koudemon and another government employee to 6 months in prison and ordered them to pay \$1,120 (600 thousand CFA francs) in damages.

Unlike in the previous year, there were no reports that police beat persons while forcibly dispersing demonstrators.

During the year, particularly around the time of the first round of voting in the March presidential elections, ethnic tensions within the armed forces resulted in the beating of several military personnel of the Yakoma ethnicity, the ethnicity of former president and 2005 presidential candidate Andre Kolingba, by non-Yakoma military personnel. For example on March 20, days after the first round of presidential election voting, two unidentified military officers of the Gbaya ethnicity, the ethnicity of President Bozize, beat Sergeant Marcel Kila, a Yakoma, near the Berengo military training center. No additional information was available at year's end.

Security forces rarely were punished for committing acts of violence against civilians. However, according to government records released by year's end, the Permanent Military Tribunal convicted a total of 11 members of the military on charges of committing beatings or inflicting serious injuries and deferred 1 case.

Members of the armed forces often committed other abuses against civilians, including armed robbery and racketeering. No action generally was taken against these soldiers.

Members of security forces, particularly members of the military, raped civilians during the year. Security forces rarely were punished for raping civilians; for the most part, perpetrators either escaped police custody or were released by fellow soldiers and other security agents. According to all government records released by year's end, the Permanent Military Tribunal convicted a total of 2 members of the military on rape charges and sentenced each to 10 years in prison.

On April 1, Sergeant Amadou Abakar, a member of the protection and security battalion for the National Assembly, raped a high school student from Lycee Gobongo inside the national assembly building in Bangui. Abakar reportedly raped her at gunpoint and threatened the lives of passers-by who tried to intervene. Police arrested Abakar, and during its July 29-August 19 session, the permanent military tribunal sentenced Abakar to a total of 12 years for rape and desertion.

On April 9, five uniformed military officers reportedly raped a young girl near the central market of Bangui. The officers also reportedly beat a passer-by who attempted to intervene. No additional information was available at year's end.

On September 13, a member of the police force raped a 16-year-old girl in a Bangui neighborhood. The public prosecutor of the republic ordered his arrest in September. No additional details were available at year's end.

During the year unidentified armed groups thought to include rebels and remnants of insurgency groups from previous conflicts, including former pro-Bozize combatants from Chad, continued to attack, rob, beat, and rape civilians in villages and those traveling on main routes, mostly in the countryside.

During the year no actions were taken against soldiers loyal to the former Patasse government or pro-Bozize fighters who committed serious violations of human rights and humanitarian law, including widespread looting; rape; abductions resulting in disappearances; inhumane, cruel, and degrading treatment; and the recruitment and use of children as soldiers prior to and during the 2003 coup.

No actions were taken against pro-Patasse Liberation Movement of the Congo troops from the Democratic Republic of the Congo (DRC) who reportedly committed numerous abuses of civilians, including torture, rape, and harassment during 2003.

On March 16, a Chadian member of the Central African Economic and Monetary Community force (CEMAC) shot and wounded high school student Akreme Paterne while he was visiting his sister in Bangui. No additional information was available at year's end.

#### Prison and Detention Center Conditions

Prison conditions were well below international standards and extremely harsh; prison conditions outside Bangui were generally worse. There was an estimated one thousand prisoners in the country and 55 prisons dependent on the penal administration, many of which were no longer in use. Most of the prisons outside of Bangui were targeted by looters and completely destroyed during the 2003 fighting, which contributed to congestion, nonseparation of juveniles and pretrial detainees from convicted prisoners, and related illnesses. Prison cells were overcrowded, and basic necessities, including food, clothing, and medicine, were in short supply and often confiscated by prison officials for their personal use. There were reports that guards tortured prisoners; however, unlike in the previous year, there were no reports that female inmates were raped. Prisoners depended on family members to supplement inadequate prison meals and were sometimes allowed to forage for food near the prison. Prisoners frequently were forced to perform uncompensated labor; unlike in the previous year, this work involved public works projects rather than work at the residences of government officials and magistrates.

There were two prisons in Bangui, Ngaragba central prison for men and Bimbo central prison for women. Prisoners and detainees at both prisons lived in very basic and rudimentary conditions.

Many individuals had been detained for several months and had not yet appeared before a judge. At both prisons, inmates with infectious diseases lived among healthy inmates, and medicine was either unavailable or too expensive. While prison guards would send inmates to a hospital in cases where it was deemed warranted, their prescriptions would have to be bought by family members, friends, or religious organizations; inmates with malaria, tuberculosis, and HIV/AIDS often received no effective treatment. Detainees and prisoners at both prisons received one meal per day; meals were insufficient and consisted of cassava, rice, and either green beans, fish, or (occasionally) meat, depending on the day of the week. There were no individual cells. In the common rooms, some inmates had thin matting, provided by prisoners' families and charities, that served as beds; others slept on the floor. A few shower stalls, interior open-air courtyards, and weekly visiting hours were available to all detainees and prisoners at both prisons.

Male and female prisoners were held in separate facilities in Bangui but housed together elsewhere. Pretrial detainees were not held separately from convicted prisoners.

Constructed in 1953 for 400 prisoners, Ngaragba held 285 individuals on September 16, including 162 pretrial detainees. Several detainees had been detained for seven months and had not yet appeared before a judge. On average, there were 10 individuals in each common room. In the prison section reserved primarily for former government officials suspected or convicted of financial crimes, common rooms held four persons on average, and inmates received privileges such as access to a large courtyard with plastic chairs. A block of dark, tiny cells comprised a stand-alone structure known as the discipline block. The block smelled strongly of feces, and some human rights observers suspected that the prison still placed inmates in it; however, it was empty during visits by outside monitors, and prison officials said the block was no longer in use. Although the government repainted Ngaragba and did some other minor improvements in recent years, some of the prison walls were crumbling and in need of structural repair.

Constructed in 1980 to hold 200 prisoners, Bangui's Bimbo central prison for women held 44 women on September 20, the majority of them pretrial detainees. Bimbo's population consisted primarily of women accused of sorcery, and very few detainees had lawyers. Several individuals had been detained for four months and had not appeared before a judge. One detainee accused of defaulting on a debt had spent more than four months in the prison, even though the infraction constitutes a civil rather than a criminal matter; after being alerted to her case, the public prosecutor of the republic ordered her release, and she was freed the following day. Prison officials allowed detainees and prisoners to be sent to a nearby

hospital when they became ill. Prison officials allowed women to leave Bimbo for a week or two in the case of child birth and the death of a parent. Overcrowding was reportedly not a problem in Bimbo, and children younger than five years old were allowed to stay with their mothers at the prison. Prison officials did not provide soap, and this contributed to a lack of hygiene. There were no reports of rapes or sexual harassment by the all-male prison guard staff.

Conditions in detention centers were much worse than those in prisons and in some cases were life threatening. There was no law requiring detention centers to provide a minimum amount of food to detainees, and suspects in police and gendarmerie cells had to depend on family, friends, religious groups, and nongovernmental organizations (NGOs) for food. In Bangui detention centers, detainees reported and showed scars, bruises, and other evidence of beatings and torture. Overcrowding was a severe problem in detention centers across the country. Detainees with infectious diseases lived among healthy prisoners, and medicine was not available. Suspects generally slept on bare cement or dirt floors, and lice and bedbug infestation was very common. Corruption among detention center guards, who had not been paid in months, was rife. Guards often demanded between \$0.37 (200 CFA francs) and \$0.55 (300 CFA francs) before visitors were allowed to see detainees, before water could be fetched, before food could be delivered to detainees, and before detainees were allowed to take showers; these bribe thresholds were well above what most detainees could afford. In Bangui, male and female detainees were separated; however, they reportedly were not separated in detention facilities in the countryside. According to the local human rights groups, lack of training and poor supervision at detention centers were serious problems and continued to result in torture and beatings. There were no separate detention facilities for juvenile prisoners, who routinely were housed with adults and often subjected to physical abuse.

Visits during September to five of Bangui's detention centers revealed dank, filthy, and overcrowded cells with very little light and leaky buckets for toilets. Most detainees had been in detention without appearing before a judge for more than two weeks, and some had been detained for more than three months. Several detainees complained that they had not eaten in two days, had not been allowed to bathe or shower in two weeks, and had lice. Many detainees, especially those held by the OCRB, displayed scars on their heads and feet that they said were the results of periodic torture by the guards. One OCRB detainee had a three-day-old wound from his shoulder to his wrist that was visibly very infected and received medical attention only after international visitors convinced the guards of the risk of death.

Visits on September 20 to detention cells in Bangui revealed an overcrowded OCRB cell in which there was not enough room for all 40 detainees to lay down to sleep. The OCRB and Central Police Commissariat were detaining a 13-year old boy, who said he had not eaten in 3 days, as well as a 15-year-old boy. Police were detaining the boys in very small cells with adults, despite a law forbidding the detention of children 16 years of age and younger. Once alerted to the detention of the two minors, the public prosecutor of the republic ordered the release of both boys, and they were freed the same day. The public prosecutor of the republic was very receptive to reports about conditions observed by diplomats and NGOs in detention centers and prisons and said that while his office normally conducted periodic inspections of detention centers, a growing lack of resources and personnel had made it increasingly difficult to conduct inspections. He said the OCRB often did not respect the law prohibiting the detention of persons under 16 years of age.

Each detention center was supposed to assign an investigator to each of its detainees to compile a file that would facilitate the timely processing of each case. However, the number of investigators was insufficient, and even in Bangui, there often was only one vehicle and one typewriter for each detention center; the lack of other resources also severely impeded the timely conduct of investigations.

The government permitted prison visits by human rights observers. The International Committee for the Red Cross (ICRC) and religious groups routinely provided supplies, food, and clothes to prisoners. The ICRC and the human rights unit of BONUCA, the UN peace-building mission in the country, had unrestricted access to prisoners.

#### d. Arbitrary Arrest or Detention

The law provides protection against arbitrary arrest and detention and accords the right to a judicial determination of the legality of detention; however, security forces frequently ignored such provisions, and arbitrary arrest and detention were serious problems.

### Role of the Police and Security Apparatus

The National Police, including the OCRB, are under the direction of the director general of police, who is under the direction of the Ministry of Interior and Public Security. The military forces, including the presidential security forces, and the National Gendarmerie are under the jurisdiction of the Ministry of Defense. Both the police and military share responsibility for internal security.

As part of its efforts to protect citizens and safeguard property, the government continued to support joint security operations in the capital conducted by the armed forces, the regional peace force known as CEMAC, and French forces.

Police were not effective, partly as a result of salary arrears owed by the government and a severe lack of resources. Many citizens lacked faith in the police; consequently, mob violence against persons suspected of theft and other offences remained a problem (see section 1.a.). Corruption in the police, including the use of illegal roadblocks to commit extortion, remained a serious problem (see sections 2.d. and 3). The government did not take effective action to punish abusers, and impunity remained a severe problem. However, a government commissioner in charge of human rights and good governance said his staff was conducting training of security forces to make them aware of the punishment that could result from constructing illegal roadblocks, and that the government began implementing a zero-tolerance policy to eliminate illegal roadblocks during the last quarter of the year; it was not clear how effective this policy was by year's end. During the year the LCDH accused the security forces of terrorizing the population, killing civilians, and committing armed robbery with impunity. Despite being criticized by local human rights groups and the media for committing numerous, serious human rights abuses, the OCRB continued to expand its mission, which local human rights groups said was cause for concern. Although the OCRB was created to function only in Bangui and to focus on combating violent banditry, the OCRB increasingly investigated, detained, and abused persons accused of lesser crimes such as embezzlement and petty theft; it also conducted some operations outside Bangui. During the year the minister of justice said there was a need to better define the OCRB's mission.

There were mechanisms available to investigate police abuses. Citizens could and did file complaints of police abuse with the public prosecutor of the republic. The most common complaints involved thefts, rape, brutality, and embezzlement. With the assistance of BONUCA and the high commissioner of human rights and good governance, the prosecutor actively investigated numerous complaints of police abuse, including reported killings (see section 4). The prosecutor had the authority to order the arrest of police officers suspected of committing abuses and exercised that authority during the year; however, the prosecutor's staff was small, had only one computer (a gift from an NGO), and was severely lacking in other resources.

The head of the OCRB said that during the year the government had taken disciplinary action against more than 10 OCRB members for human rights violations, including 2 OCRB members accused of raping a woman; however, he refused to share details of such investigations, citing reasons of national security.

BONUCA continued to provide security forces agents, including police officers, with human rights training. By year's end BONUCA had trained more than 900 security forces agents since its creation in 2000.

### Arrest and Detention

Judicial warrants are not required for arrest. The law stipulates that persons detained in cases other than those involving national security must be brought before a magistrate within 48 hours, although this period is renewable once, for a total of 96 hours. In practice authorities often did not respect this deadline, in part due to inefficient judicial procedures and a lack of judges. By law national security detainees are defined as those held for crimes against the security of the state. National security detainees may be held without charge for up to 8 days, and this period can be renewed once, for a total of 16 days.



However, in practice persons were held without charge for long periods. The law allows detainees to have access to their family and to legal counsel. Indigent detainees may request a lawyer provided by the government. Detainees are allowed to post bail or have family members post bail for them. Lawyers and families generally had free access to detainees.

Security forces arbitrarily arrested and detained numerous persons, particularly around the first round of presidential elections on March 13. For example on March 10, security forces arrested high school student Guy Aime Nzawouin and accused him of selling voter registration cards. Authorities detained him in Bangui's Ngaragba prison. No additional information was available at year's end.

On April 19, security forces arrested Joseph Clotaire Abanda-Kaya, the country's charge d'affaires in the DRC. Abanda-Kaya was accused of preparing a coup d'etat to overthrow President Bozize. No additional information was available at year's end.

On August 4, the OCRB arrested on charges of fraud Marcel Bagaza, former chief of mission for the former president of the National Assembly and member of the MLPC's National Political Council, and three other men, Kalme Djakobaye Sindo, Alexandre Marboua, and Edourd Beroge. A court subsequently sentenced Bagaza to a suspended prison term. No additional information was available at year's end.

There were reports of persons detained for political reasons during the year. The government permitted BONUCA access to them on a regular basis. At year's end it was not clear how many political detainees there were.

Security forces arrested and detained at least one journalist during the year (see section 2.a.). Unlike in the previous year, there were no reports that security forces arrested demonstrators during the year.

During the year human rights observers and government officials estimated that at least 100 women, men, and children were arrested and charged with the practice of witchcraft, or sorcery. Prison officials at Bangui's Bimbo central prison for women said that persons accused of sorcery were arrested and detained or imprisoned for their own safety since village mobs sometimes killed suspected sorcerers or witches (see section 1.a.). Human rights observers said the belief in sorcery was so entrenched in the country that attempts to abolish legal recognition of the crime would be very difficult; however, observers said they were continuing to push for fair trials of those accused of the crime (see section 1.e.).

During the year a court granted provisional liberty to Dr. Joseph Kalite, a former health minister arrested in July 2004. However, he remained under investigation for possession of illegal weapons at year's end.

Prolonged pretrial detention was a serious problem. As of late September, pretrial detainees in Bangui comprised 57 percent of Ngaragba's prison population and an estimated 50 percent of Bimbo's prison population. Detainees were usually informed of the charges levied against them; however, many waited in prison for several months before seeing a judge. Judicial inefficiency, corruption, severe financial restraints on the judicial system, and a lack of judges contributed to pretrial delays. Some detainees remained in prison for years because of lost files and bureaucratic obstacles.

Public Prosecutor of the Republic Findiro Firmin said he was "always at war" with the OCRB and that the head of the OCRB frequently neglected to follow his orders and laws pertaining to pretrial detention.

## Amnesty

During the year President Bozize pardoned all prisoners convicted of misdemeanor offenses. It was unclear how many prisoners benefited from the pardon.

On October 19, President Bozize pardoned General Ferdinand Bomba Yeke, former head of presidential security forces for former president Patasse. Bomba Yeke, who many considered to be a political prisoner, was subsequently released from a military base in Bangui. Bomba Yeke had been accused of using jet fighters to kill numerous rebels who helped then General

Bozize seize power. Military sources said Bomba Yeke's detention was for his own safety, as some former rebels who had fought alongside Bozize had vowed to kill him to avenge losses he caused in their rebellion.

#### e. Denial of Fair Public Trial

The constitution provides for an independent judiciary; however, the judiciary remained subject to the influence of the executive branch. Judges are appointed by the president after being nominated by the Superior Council of Magistrates. The courts barely functioned due to inefficient administration of the courts, a shortage of trained personnel, growing salary arrears, and a lack of material resources. For example the Ministry of Justice had only one computer and one printer to serve the entire country. In addition, many citizens did not have access to the judicial system. The Ministry of Justice occasionally had sufficient funds to send judges to geographically isolated communities located great distances from the nearest courthouse, but the average citizen had to travel at least 31 miles to reach 1 of the country's 25 court houses. More courts were being established beyond the capital, including six courts destroyed in the 2003 coup that were rebuilt in 2004; however, traditional justice ordered by the head of a family or a village retained a preponderate role in settling conflicts and administering punishments. Furthermore, for the entire population, there were fewer than 150 judges, many of whom were not intimately familiar with the national laws. The overwhelming majority of citizens did not have the opportunity to be defended by a barrister, as there were fewer than 40 practicing lawyers in the country, almost exclusively in Bangui.

Judicial corruption remained a serious impediment to citizens' right to receive a fair trial. According to the LCDH, the judicial system was "rotten," from the judges down to the bailiffs. Many lawyers would pay judges to receive verdicts favorable to their clients. There were, however, some efforts to combat judicial corruption. In July the new minister of justice, Paul Otto, introduced a zero-tolerance policy and suspended four judges suspected of engaging in corruption. A special disciplinary council composed of high-ranking judicial officials such as the president of the supreme court, as well as magistrates elected by their peers, conducted a review of the four judges' actions and judicial history, which was ongoing at year's end. In addition, during the year the Ministry of Justice began conducting a standard ministry-wide review every two months to identify areas where lack of efficiency might be hindering the judicial process. There was no additional information on these reviews at year's end.

The judiciary consists of a tribunal of first instance, the court of appeal, the cassation court, the high court of justice, the supreme court, commercial and administrative courts, a military court, and the Constitutional Court. The highest court is the Constitutional Court, which determines whether laws passed by the National Assembly conform to the constitution. The Constitutional Court also receives appeals challenging the constitutionality of a law. Lower courts hear criminal and civil cases and send appeals to the court of appeals.

#### Trial Procedures

Trials are held publicly, and defendants have the right to be present and to consult a public defender. Juries are used in the penal court for criminal trials. If an individual is accused of a serious crime and cannot afford a lawyer, the government has an obligation to provide one. Defendants also have the right to question witnesses, to present witnesses and evidence on their own behalf, and to have access to government-held evidence relevant to their case. Defendants are presumed innocent until proven guilty, and if convicted, defendants have the right to appeal. The government generally complied with these legal requirements; however, the judiciary did not enforce consistently the right to a fair trial, and there were many credible reports of corruption within the court system. According to the minister of justice, there continued to be a grave lack of neutrality among judges, many of whom were significantly influenced by politics in their rulings. One ethnic group in particular was reportedly subject to legal discrimination and unfair trials (see section 5).

During the year the OCRB continued to commit extrajudicial killings of persons suspected of being violent recidivists. The government and, to some degree, the citizenry tolerated these acts, in part because of a general lack of faith in the judicial system (see section 1.a.).

There were numerous reports that, due to judicial inefficiency, citizens in a number of cities established their own courts to deal with cases through parallel justice, especially in cases of suspected witchcraft; however, the minister of justice disputed the existence of such alternative courts.

Witchcraft or sorcery is a crime punishable by execution, although no one accused of witchcraft received the death penalty during the year. Most individuals convicted of sorcery received sentences of 1 to 5 years in prison; they can also be fined up to \$1,500 (817,836 CFA francs). During a typical trial of someone accused of sorcery, traditional doctors were called to give their opinion of the suspect's ties to sorcery. "Truth herbs" were used to make a suspect "confess." Neighbors were called as witnesses and, because spells were believed to involve burying bits of clothing, sample cuttings of clothes were brought before the jury as evidence. Police and gendarmes conducted investigations into witchcraft, and according to the minister of justice, investigations into allegations of sorcery were difficult.

The permanent military tribunal, which judged only members of the military accused of crimes, held two sessions during the year. During the first session, held between July 29 and August 19, the tribunal judged 38 cases on a variety of alleged human rights violations, including extrajudicial killings, rape, and armed robbery (see sections 1.a. and 1.c.).

#### Political Prisoners

There were reports of at least one political prisoner (see section 1.d.). Authorities granted BONUCA's human rights unit and human rights NGOs free access to prisons during the year.

#### f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

The law prohibits invasion of homes without a warrant in civil and criminal cases; however, police sometimes used provisions of the penal code governing certain political and security cases that allow them to search private property without a warrant. Security forces continued to carry out warrantless searches for guns and ammunition in private homes. For example at 2 a.m. on July 4, members of the OCRB entered the home of Gilbert Bissidi Beodo, president of a local Bangui chapter of the opposition party MLPC, and searched his house. After finding a gun dating from 1961 that was bequeathed to Bissidi Beodo by his father, the OCRB arrested him. No additional information was available by year's end.

The government continued to engage in wiretapping without judicial authority.

During the year unidentified armed groups attacked, looted, and burned homes in rural areas in the northern part of the country (see sections 1.a., 1.c., and 2.d.).

### Section 2 Respect for Civil Liberties, Including:

#### a. Freedom of Speech and the Press

The constitution provides for freedom of speech and of the press; however, despite the implementation of a new and almost completely decriminalized press law during the year, the government restricted freedom of the press. The government employed threats and intimidation to limit criticism of the government, mostly prior to the conclusion of presidential and legislative elections in the spring. On the whole, local media observers said there was greater press freedom during the year and attributed the increase of press freedom to the new press law and the creation in February of the High Council of Communications (HCC), an independent institution composed of nine members, including journalists, charged with promoting press freedom and assisting the government with media licensing and regulation. In addition, the Central African Journalists' Union (UJCA) and the Central African Association of Private and Independent Newspaper Publishers, both of which campaigned vigorously for the adoption of the new press law, continued to advocate greater press freedom during the year and facilitated unprecedented national election coverage by local media. Journalists who worked for state-owned media reportedly practiced self-censorship.

Individuals could criticize the government publicly without reprisal; however, the government attempted to discourage meetings by the political opposition on at least one occasion during the year (see section 1.c.).

Throughout the year, more than 30 newspapers, many of which were privately owned, were published at varying intervals and often criticized the president, the government's economic policies, and official corruption. While five independent dailies--including *Le Citoyen*, *Le Confident*, and *Le Democrate*--were available in Bangui, they were not distributed outside of the Bangui area, and the absence of a functioning postal service continued to hinder newspaper distribution. Financial problems prevented many other private newspapers from publishing regularly, and the average price of a newspaper, approximately \$0.55 (300 FCA francs), was too much for most citizens to afford.

Radio was the most important medium of mass communication, in part because the literacy rate was low. The government owned and operated a radio station and the country's only television station. Unlike the previous year, the activities of the president and other senior government officials did not dominate the broadcast media. This change was due to the HCC's efforts to provide the country's political parties with equal access to state-owned media services. For example during the electoral campaign following the first round of elections in March, the HCC intervened to provide each second-round presidential and legislative candidate with an equitable number of air-time minutes on Television Centrafrique and on Radio Centrafrique.

The private radio station Radio Ndeke Luka continued to provide a popular and independent alternative to the state-owned Radio Centrafrique, although the reach of Ndeke Luka was limited; outside Bangui, it was available for only one hour daily, via shortwave. Ndeke Luka broadcast domestically produced national news and political commentary and rebroadcast international news throughout the country, with assistance from a foreign media development organization and the UN Development Program. Radio Notre Dame, which was owned and operated by the Catholic Church, broadcast national news, debates, legal counseling, and human rights education. International broadcasters, including Radio-France Internationale, continued to operate during the year.

The government continued to monopolize domestic television broadcasting, although at least one application to establish a private television station was pending at year's end.

Journalists continued to face many challenges, including chronic financial problems, a serious deficiency of professional skills, the absence of an independent printing press, and a severe lack of access to information held by the government (see section 3). The UJCA continued to lobby the government for the creation of a national press center where journalists could receive professional training.

During the year, particularly prior to presidential and legislative elections in March and May, security forces often harassed journalists and sometimes physically and verbally threatened them. In addition, security forces arrested and detained a journalist on at least one occasion, and on another occasion reportedly tried to kidnap a journalist.

In February police in Bangui arrested the editor in chief of *Le Confident* and detained him without charge for 48 hours.

In March, following critical press coverage of President Bozize's refusal to participate in a televised debate prior to the presidential election, the minister of the interior summoned Ndeke Luka news editor Patrick Akibata and other Ndeke Luka staff members and reportedly threatened to close Radio Ndeke Luka if the station continued to criticize the president.

Following critical press coverage of the second round of presidential and legislative elections on May 8, members of the presidential security forces and supporters of President Bozize issued death threats in person and by telephone to *Le Citoyen* managing editor Maka Gbossokotto; Zephirin Kaya, who presented a popular civic education show on Radion Ndeke Luka; and Patrick Akibata, the news editor in charge of election coverage for Radio Ndeke Luka. In addition, on May 15, security forces acting on the orders of a member of the presidential security forces, reportedly tried to kidnap Kaya at a

Bangui airport; however, Kaya managed to escape. Gbossokotto and Akibata said the threats were linked to reports carried by Ndeke Luka and *Le Citoyen* that members of the security forces had intimidated voters and committed acts of violence prior to the election.

At the beginning of the year, the president signed a law passed by the transitional legislative body in December 2004. Under the law, no journalist can be imprisoned for defaming a third party in a published story; instead, a right of reply or compensation must be accorded to the plaintiff. However, the law still provides for terms of imprisonment and fines of up to \$1,823 (1 million CFA francs) for journalists who incite disobedience among security forces or incite persons to violence, hatred, or discrimination through publication in a newspaper or a broadcast. In addition the law provides for terms of imprisonment of between 6 months and 2 years and fines of up to \$1,823 (1 million CFA francs) for the publication or broadcast of false or fabricated information that "would disturb the peace." Although defamation is no longer punishable by imprisonment under the law, journalists found guilty of libel or slander faced fines of between \$182 and \$1,823 (100 thousand and 1 million CFA francs).

Other provisions in the new press law that remain causes for concern among local press observers include the following: a requirement that local press organs submit copies of their next publications to four government entities and the HCC prior to distribution, and the requirement that foreign press organs submit copies of publications to two government ministries and the HCC at least four hours before distribution.

There were reports that local administrators in or near Bouar and Berberati confiscated or seized editions of publications during the year.

On December 2, the minister of communication banned the diffusion by media of songs, programs, or articles deemed to have a "misogynist character" or to disrespect women.

Officials used libel laws to suppress criticism of political leaders on at least one occasion. Following critical press coverage of President Bozize's decision to pardon numerous criminals in June, a government prosecutor filed a lawsuit against Gbossokotto. He accused Gbossokotto of committing libel in an article published in *Le Citoyen* during the summer. The lawsuit was still pending at year's end.

According to the HCC, during the year a court revoked a one-year suspended sentence and \$1,000 (546,750 CFA francs) fine imposed on Gbossoko in August 2004 for libel charges.

There were reports that the government occasionally limited or blocked access to the Internet for certain journalists who were critical of the government.

There were no reports that the government restricted academic freedom.

Local journalists and the HCC reported that violence perpetrated by former pro-Bozize rebel fighters, forces loyal to former president Patasse, and armed bandits prevented Bangui-based reporters from venturing outside the capital and severely limited the availability of information about several rural prefectures, particularly in the northern and western regions of the country.

## b. Freedom of Peaceful Assembly and Association

### Freedom of Assembly

The constitution provides for the right of assembly; however, although the government afforded more respect to this right during the year, the government restricted this right on a few occasions. Organizers of demonstrations and public meetings were required to register with the minister of the interior 48 hours in advance, and political meetings in schools or churches

were prohibited. The law required any association intending to hold a meeting to write a letter to the Ministry of Interior and get the ministry's approval prior to any meeting. In some cases, when associations asked for such approval, the ministry refused "for security reasons."

On at least one occasion, police beat and arrested persons holding a meeting (see section 1.c.).

Unlike in the previous year, there were no reports that police beat or detained demonstrators or used force to disperse demonstrations during the year. Unlike in the previous year, security forces did not kill protestors.

On December 10, approximately 100 riot police prevented striking civil servants from holding a rally in Bangui by sealing off the headquarters of the largest trade union. Minister of Labor Jacques Bothy said police acted illegally and violated workers' rights, noting that the trade union's headquarters was an international zone under the control of the International Trade Organization.

No action was taken against members of the security forces responsible for the use of excessive force to disperse demonstrations in 2003 or 2002.

#### Freedom of Association

The constitution provides for freedom of association, and the government generally respected this right in practice during the year. All associations, including political parties, must register with the Ministry of Interior to enjoy legal status. The government usually granted registration expeditiously. The government normally allowed associations and political parties to hold congresses, elect officials, and publicly debate policy issues without interference, except when they advocated sectarianism or tribalism.

The law prohibiting nonpolitical organizations from uniting for political purposes remained in place; however, there were no reports that this law was enforced during the year.

#### c. Freedom of Religion

The constitution provides for freedom of religion but establishes fixed legal conditions and prohibits what the government considers religious fundamentalism or intolerance; at times, the government limited this right in practice. The constitutional provision prohibiting religious fundamentalism was understood widely to be aimed at Muslims, who made up between 15 and 20 percent of the population.

Religious groups (except for traditional indigenous religious groups) were required by law to register with the Ministry of Interior. The ministry's administrative police kept track of groups that failed to register; however, the police did not attempt to impose any penalty on such groups. The ministry could decline to register, suspend the operations of, or ban any organization that it deemed offensive to public morals or likely to disturb the peace. Any religious or nonreligious group that the government considered subversive was subject to sanctions. The Ministry of Interior also could intervene to resolve internal conflicts about property, finances, or leadership within religious groups. However, the government imposed no new sanctions on any religious group during the year.

According to the Ministry of Territorial Administration, several churches whose activities were suspended by the government in 2003 had fulfilled government requirements and reopened. To resume their activities, religious institutions must prove that they have a minimum of one thousand members, and the reverends must bring evidence that they graduated from the highest religious schools and fulfilled official requirements on church creation. This decree was reportedly intended to regulate the proliferation of places of worship.

The practice of witchcraft or sorcery is a criminal offense under the penal code, and although many individuals were arrested for these practices, it was often in conjunction with some other offense, such as murder. Authorities said that police often arrested and detained persons accused of witchcraft or sorcery in order to protect them from societal violence against suspected witches or sorcerers in the communities of the accused.

Mobs reportedly continued to kill and injure suspected sorcerers or witches during the year (see section 1.a.).

#### Societal Abuses and Discrimination

In general there was religious tolerance among members of different religious groups during the year; however, there were occasional reports that some villagers who were believed to be witches were harassed, beaten, or sometimes killed by neighbors (see section 1.a.).

There was no known Jewish population and no reports of anti-Semitic acts.

For a more detailed discussion, see the 2005 *International Religious Freedom Report* ([//2009-2017.state.gov/j/drl/rls/irf/2005/](https://2009-2017.state.gov/j/drl/rls/irf/2005/)).

#### d. Freedom of Movement within the Country, Foreign Travel, Emigration, and Repatriation

The constitution provides for the right to move freely throughout the country; however, the government restricted this right during the year. Security forces, customs officers, and other officials harassed travelers unwilling or unable to pay bribes or "taxes" at checkpoints along major intercity roads and at major intersections in Bangui.

During the first half of the year, police increased the number of vehicles that it stopped and searched, particularly in Bangui. In addition, local human rights organizations and UN officials said the problem of illegal road barriers constructed by members of the military continued to be widespread and that travelers encountered extortion at these barriers on a weekly basis. Members of the military did not allow road travelers to pass without paying a fee. For example merchants and traders traveling more than 350 miles on the main route from Bangui to Bangassou encountered an average of 25 military barriers; at each road block, a motorist paid an average fee of \$16 (8,781 CFA francs), which amounted to \$410 (225,000 CFA francs) for the entire trip. This type of extortion greatly discouraged trade and road travel and severely crippled the country's economy. Impunity continued to facilitate the use of illegal roadblocks and extortion of motorists by security forces, and there were no reports that the government punished or prosecuted members of the security forces who engaged in these activities.

On March 13, the day of the first round of presidential and legislative elections, the government closed all border crossings and forbade all nonauthorized automobiles from circulating in urban centers during voting hours. The government also prohibited all flights, except for international flights, and river traffic.

During at least part of the year, the military reportedly forbid travel through the northern town of Ben-Zambe, the birthplace of President Bozize, for any persons who did not belong to the president's Gbaya ethnicity.

Significant numbers of unidentified bandits and former rebels continued to severely impede freedom of movement—including that of traders and delivery trucks—particularly in northern, and northwestern zones of the country that the government effectively did not control. The government was also unable to control highway bandits operating in the eastern prefectures of Ouaka and Haute-Kotto. The highway bandits, or *coupeurs de routes*, often constructed road barriers to stop drivers, robbed them, and sometimes killed them if they refused to pay. Because many travelers ceased carrying large sums of money with them, many highway bandits in the northern and northwestern areas of the country reportedly turned to the more lucrative business of kidnapping and targeted the children of a traditionally wealthy ethnic group (see section 5).

With the exception of diplomats, the government required that all foreigners obtain an exit visa. Travelers intending to exit the country could be required to obtain affidavits to prove that they owed no money to the government or to parastatal companies.

The constitution does not permit the use of exile, and the government did not employ it in practice. Former President Patasse remained in self-imposed exile during the year.

During the year the government facilitated the repatriation of some CAR refugees from neighboring countries; however, due to an absence of security and the resulting disruption of agricultural activities in the north, the Office of the UN High Commissioner for Refugees (UNHCR) did not encourage repatriations to that region.

Between June and December, bands of unidentified armed men attacked civilians in the north, causing between 12,000 and 15,000 persons to flee the country. Most fled to southern Chad. At year's end an estimated 45,000 CAR refugees residing in southern Chad, most of whom had fled CAR during 2002 and 2003.

Between January and December, unidentified armed groups committed violations against the M'bororo ethnic group on account of their relative wealth, causing between 3 thousand and 10 thousand M'bororos to flee the Ouham-Pende and Nana-Mambere prefectures in the northwest (see section 5).

Some observers criticized the government for failing to restore order to the north; however, on August 25, a UNHCR official based in Bangui said the government was taking the problem seriously after the president sent some military forces to the north to engage the unidentified armed groups.

#### Internally Displaced Persons (IDPs)

There continued to be large numbers of persons who were internally displaced by the 2003 coup and the continuing instability, particularly in the north. In June 2004 there were between 230 thousand and 300 thousand IDPs in the country; however, there were no reliable data on the number of IDPs. According to the UNHCR, most IDPs were displaced for short periods of time. The governments of CAR, Chad, and Cameroon conducted joint security operations in an effort to secure the northern region of CAR and control the proliferation of small arms. Despite these operations, however, the government was not able to provide a sufficient degree of security or protection for IDPs in the northern part of the country. The absence of security rendered this region inaccessible to humanitarian organizations, contributing to a lack of proper medical care, food security, and school facilities. There were no reports that the government attacked IDPs or that it forced them to resettle under dangerous conditions.

#### Protection of Refugees

The law provides for the granting of asylum or refugee status in accordance with the 1951 UN Convention relating to the Status of Refugees and its 1967 Protocol, and the government has established a system for providing protection to refugees. In practice, the government provided protection against *refoulement*, the return of persons to countries where they feared persecution, and granted refugee status and asylum. The government accepted refugees *prima facie*. The government continued to cooperate with the UNHCR and other humanitarian organizations in assisting refugees and asylum seekers.

Almost all refugees in the country were registered with the National Commission for Refugees. According to the UNHCR, by year's end the country was hosting a total of approximately 34 thousand refugees. Most of the refugees came from Sudan and the DRC.

In September and October, the UNHCR assisted the governments of the CAR and Chad in the repatriation of approximately 1,400 Chadian refugees. In addition, in the last three months of the year, the UNHCR assisted the governments of the CAR and Sudan in the repatriation of several thousand Sudanese refugees.



During the year security forces subjected refugees to the same types of arbitrarily arrest and detention as citizens; however, refugees were especially vulnerable to such human rights violations. The government allowed refugees freedom of movement; however, they were subject to the same roadside stops and harassment by security forces and unidentified armed groups as citizens were.

Several international organizations worked with the government and UNHCR to assist refugees during the year. They included the International Committee of the Red Cross, Doctors without Borders, an international confederation of Catholic organizations called Caritas, and international NGO International Cooperation.

### Section 3 Respect for Political Rights: the Right of Citizens to Change their Government

The constitution provides citizens with the right to change their government peacefully, and, unlike in the previous year, citizens exercised this right in presidential and legislative elections that election observers considered to be generally free and fair, despite some problems.

#### Elections and Political Participation

On March 13 and May 8, the country held two rounds of multiparty presidential and legislative elections that ended two years of military rule by General Bozize. Approximately 269 national and 28 international observers, the latter from the International Organization of the Francophonie, judged the elections to be generally free and fair and representative of the voters' will, despite irregularities and accusations of fraud by candidates running against Bozize.

Before election campaigning began, there was controversy and disputes over which candidates would be able to run. On December 30, 2004, the transitional Constitutional Court ruled that seven presidential candidates were ineligible for the election. The court, which disqualified all candidates from the former ruling party, indicated that some candidates had been blocked from running for failing to deposit the required \$9,200 (5 million CFA francs), for not owning land or homes in the towns in which they resided, or for discrepancies in the documents they presented the electoral commission. The ruling provoked criticism locally and internationally. On January 4, after having called for national elections to be held on January 30, Bozize invoked presidential powers and announced that three of the seven candidates barred by the court would be allowed to run. Amid mounting tension and controversy, and following mediation by the president of Gabon on January 22, Bozize agreed to allow all his rivals, except former President Patasse, to run. According to the agreement, Patasse would remain barred because he was the subject of judicial proceedings involving accusations that he stole \$129 million (70 billion CFA francs) from the national treasury. Patasse's MLPC party announced that it would support the candidacy of former Prime Minister Martin Ziguele, who had been running as an independent. The first round of elections were then postponed to March 13 to allow candidates more time to campaign.

In addition, the Joint Independent Electoral Commission (CEMI), a 30-member group chosen by political parties, initially barred 261 of 970 legislative candidates from running in the parliamentary elections; however, a January 21 court ruling allowed 219 of the 261 barred candidates to run.

The campaign prior to the first-round elections was tense. The independent press reported isolated incidents of clashes between rival groups of supporters, particularly the supporters of Bozize and former President Kolingba; there were also allegations of some fraud involving voter registration documents. In addition, the HCC took some media-related disciplinary measures against certain candidates who violated the electoral code of conduct, signed by all candidates, by using public media to engage in personal attacks and insult other candidates.

In the first round of voting, voters chose from 11 presidential candidates and more than 900 parliamentary candidates who were competing for 105 seats in the National Assembly. General Bozize, running as an independent presidential candidate, gained 43 percent of the first-round vote, while former Prime Minister Ziguele won 23.5 percent. The two top presidential

candidates at the conclusion of the first round advanced to a run-off in the second round in May, which Bozize won with 64.4 percent of the vote, while former Prime Minister Ziguele garnered 35.4 percent.

In the legislative elections, candidates who failed to win at least 50 percent of the vote in the first-round had to run in a second-round runoff. Since only 17 candidates won an outright majority in the first round, this system resulted in 87 candidates running in the second round. After officials counted the second-round votes for National Assembly seats, the National Convergence Movement, a grouping of smaller parties, military officials, and political leaders supporting General Bozize, won 42 seats, the largest number of any party; the MLPC won the second highest number of seats, 11. Presidential candidate Kolingba's party, the Central African Democratic Rally, took eight seats.

Poll monitors said all voting operations went generally smoothly but slowly because of organizational problems. The opposition Union of Active Forces of the Nation (UFVN), a grouping of Bozize's rivals, denounced the elections on the grounds of alleged fraud and irregularities involving voting and vote counting, and it called for the elections to be voided. Former President Kolingba said the election was completely rigged, and his supporters said militants armed by supporters of General Bozize threatened them. Although the CEMI chairman acknowledged there had been "some strange cases" at several polling stations, including cases where there were more votes than registered voters, he said he believed the election reflected the will of the people. The UN supported the election results and urged opposition groups to pursue any electoral disputes through legal channels.

On March 22, before election officials had tallied the results of the first round of presidential elections, armed individuals exchanged gunfire outside the Bangui house of former President Kolingba. The gunfight transpired late at night between members of the presidential security forces, who had been deployed in Bangui before first-round voting to keeping the peace during election time, and members of security forces who had been assigned to protect the former president. The minister of the interior said the exchange of gunfire, which resulted in the wounding of one military soldier in the head, was a "misunderstanding" between members of the military. However, according to a spokesman for Kolingba, unidentified gunmen attacked the residence in an attempt to kill Kolingba. The incident occurred on the same day that Kolingba and other presidential candidates belonging to the UFGV called for the annulment of presidential elections due to fraud and irregularities.

During the electoral campaign security forces sometimes beat, threatened, and intimidated individuals.

Following elections, presidential candidate Ziguele attempted to have Bozize's victory invalidated, claiming that soldiers had forced or intimidated citizens into voting for Bozize, but the Constitutional Court rejected this assertion.

The CEMI canceled the vote for one parliamentary seat, in the southern administrative division of Boganangone, due to fraud. By year's end the election had been rescheduled and had taken place. No additional information was available at year's end.

At the conclusion of National Assembly elections in May, crowds rioted in Bangui after the CEMI announced that a candidate of the pro-Bozize Kwa Na Kwa party had narrowly defeated Nicolas Tiangaye, the speaker of the transitional parliament (which was being replaced by parliamentary elections), in Bangui's fourth administrative district. The independent media and several human rights observers alleged that the government rigged the fourth district's election results due to fear of Tiangaye's popularity, influence, and outspoken criticism of human rights violations by the government; however, there was insufficient evidence to prove this claim. Tiangaye called for calm among his supporters "to avoid a bloodbath."

On December 30, the National Assembly adopted a law allowing President Bozize to rule by decree for a period of three months, instead of the nine months he originally requested. The law provides that all presidential decrees would require the advice of the Constitutional Court, be effective until March 31, 2006, and be subject to ratification by the National Assembly at the end of that period. The law, which was passed after cabinet meetings and consultations with the country's Constitutional Court, reportedly was intended to quicken the adoption of political and economic reforms by bypassing

parliamentary debates and votes. Several local human rights NGOs criticized the National Assembly's decision to give additional power to the president and accused President Bozize of attempting to establish a "dictatorship." According to the minister for parliamentary affairs, rule by decree was in accordance with article 29 of the constitution.

The state remained highly centralized. The president appointed all subnational government officials--which ran the country's 16 prefectures and 60 subprefectures--and subnational government entities had no significant fiscal autonomy. Provisions in the constitution provide for municipal elections; however, by year's end they had not been held, and towns continued to be led by mayors appointed by the president.

According to recommendations resulting from a government-sponsored national dialogue that brought together political and civil society leaders in 2003, women were supposed to make up 35 percent of posts in government ministries and political parties. However, this provision was not respected during the year. On March 13, approximately 150 women contested seats in the first round of the legislative elections. At the conclusion of the legislative elections in March and May, 10 women were elected to the 105-seat National Assembly. There were four women in the president's cabinet.

Members of northern ethnic groups, especially President Bozize's Baya ethnic group, continued to predominate among the national army. Pygmies (Batwa or Ba'Aka), the indigenous inhabitants of the southern part of the country, represented between 1 and 2 percent of the population; they were not represented in the government and continued to have little political power or influence (see section 5).

There were 2 members of the M'bororo ethnic group and approximately 13 Muslims in the 105-seat National Assembly.

During the year the LCDH criticized President Bozize for holding the position of minister of defense, saying that article 23 of the constitution prohibits the president from holding "any other political function or electoral mandate," under penalty of dismissal; however, government officials said this criticism was based on a misinterpretation of the constitution.

#### Government Corruption and Transparency

Misappropriation of public funds and corruption in the government remained widespread. Corruption continued to contribute to the country's incapacity to pay more than 45 months of government salary arrears, which the International Monetary Fund (IMF) and local human rights activists said was a major threat to the country's security, stability, and advancement of human rights. The country's tax collection and public expenditure management systems were extremely weak by international standards, and the lack of transparency and accountability in the use of public resources was a serious problem. Corruption was prevalent in almost every sector, from education and health to customs and law enforcement. Civil service salary fraud was draining 10 percent of the country's monthly budget, according to public statements by the prime minister in October.

Corruption was particularly rife in the management and oversight of three of the country's key exports, timber, gold, and diamonds. The government was not able to exercise adequate controls over these natural resources. Smuggling in the mining sector, for example, remained widespread. Experts said during the year that the quantity of diamonds exported illegally from the country--an estimated 500 thousand carats--was equal to the quantity that was exported legally and that the value of legally exported diamonds was often understated. According to an interview during the year with an IMF official, there was a particular need for the government to increase transparency in the allocation of mining permits and the regulation of enterprises active in the mining sector.

In the health sector, before providing treatment or medicine, many doctors and nurses demanded bribes of at least \$2 (1 thousand CFA francs), even of the poorest patients. In recent years, in the education sector, so many students paid teachers or administrators for a passing score on their baccalaureates, or national high school exit exams, that the exam scores lost their value in CAR. The inflation of exam scores was so egregious that it led many higher learning institutions in other countries, such as France, to evaluate CAR students with suspicion or disregard their applications altogether, effectively reducing a CAR student's educational opportunities, according to the LCDH.

During the year several local human rights observers accused mid- and high-level government officials of profiting from the extortion that members of security forces committed on a monthly or weekly basis at roadside checkpoints and illegal roadblocks (see section 2.d.).

The government took some significant steps to combat corruption. For example in July the government created judicial structures within the public prosecutor's office of a Bangui court (*tribunal de grande instance*) to conduct a targeted campaign against embezzlement, money laundering, and other forms of financial fraud. In addition, in September the government created two public prosecutor attaché positions and hired two judges specialized in investigating and combating corruption.

In August the government began publishing periodic declarations by government officials of their personal assets and wealth; the declarations were intended to prevent embezzlement and other forms of government corruption. According to the constitution, the president, government ministers, members of the National Assembly, and judges are required to declare publicly their personal assets.

On September 15, the minister of mines indefinitely suspended the granting of mining permits for gold and diamonds and prohibited foreign nationals from traveling in mining zones. The prohibition followed the government's discovery in July and August of numerous irregularities in mining zones, as well as the presence of numerous foreigners, many of whom did not have mining permits.

On September 22, the government began cooperating with the UN Development Program (UNDP) and international NGO Transparency International to investigate corruption. The government-owned and independent media began facilitating a public information campaign to underline corruption's effects and solicit anonymous public collaboration in the investigation, which was intended to measure corruption's severity and scope, as well as the harm it had done to the country's development.

In October the government suspended without pay three ministers following a probe into government employee salaries. The probe was intended to reduce the country's inflated public sector wage bill and resolve some of the government's salary arrears. The three suspended officials--the ministers for communications, tourism, and public works--were suspected of falsely claiming pay, bonuses, or benefits. The suspensions came a week after the government published a salary census of approximately 1,800 employees. The census exposed 1,699 ghost workers, or civil servants illegally receiving salaries. Several ghost workers were using fake documents and had no connection with public service. The census helped the government recover at least \$680 thousand (370 million CFA francs). Prime Minister Dote announced in a radio address that civil servants caught receiving illegal salaries would lose three months of pay and have to appear before a public sector disciplinary board, which could forward their cases to a court of law.

Also in October the government suspended for 3 months without pay 3 public treasury employees accused of running an embezzlement scam in which they netted \$95,500 (52 million CFA francs). By year's end a civil service disciplinary commission had not yet decided whether to terminate their employment and forward their case to a court.

During the year the government took some steps to monitor timber exports and the payment of taxes on forestry products, and to increase transparency in the allocation of timber industry permits. The government also continued to work with the IMF to further improve tax collection on timber products.

The law provides for access by journalists to "all sources of information, within the limits of the law"; however, it does not specifically mention government documents or government information, and no mention is made of access by the general public. Furthermore, the government was often unable or unwilling to provide information, and lack of access to information continued to be a problem for journalists and the general public. Furthermore, several years of political and economic instability and conflict have made information difficult to collect, even for the government, particularly in the countryside. Information on the humanitarian situation, for example, was hard to come by and sometimes contradictory.

## Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

Several domestic and international human rights groups generally operated without government restriction, investigating and publishing in press releases their findings on human rights cases. Government officials were somewhat responsive to their views. In general, local NGOs were weak, although there were a few that were active and had a sizable impact on the promotion of human rights. Some local NGOs, including the LCDH, the Human Rights Observatory, the Association Against Torture, and the Association of Women Jurists actively monitored human rights problems; worked with journalists to draw attention to human rights violations, including those allegedly committed by the army; pleaded individual cases of human rights abuses before the courts; and engaged in efforts to raise the public's awareness of citizens' legal rights. In addition, many members of civil society monitored the conduct of national elections in March and May. The destruction or loss of scarce resources, such as automobiles and computers, during fighting and looting in 2002 and 2003 limited local human rights NGOs, although they continued gradually to rebuild their capacity during the year. The potential impact of local human rights NGOs continued to be weakened by the failure of most members to pay membership dues and the noticeable dearth of international development organizations and foreign diplomatic missions, which once provided them with training and some financial support. For these reasons, the activities of local human rights NGOs were quite modest in scope and limited almost exclusively to Bangui.

Several members of NGOs served on the National Transitional Council (CNT), a legislative body, before it was replaced by a newly elected National Assembly in March, and Nicholas Tiangaye, the former president of the LCDH, served as the CNT's president. Several NGOs alleged that the government rigged run-off elections in May to prevent Tiangaye from winning a National Assembly seat (see section 3).

During the year human rights organizations and some political parties called for the trial of Chadian combatants accused of crimes, especially those committed during the rebellion that culminated in a coup in 2003.

International human rights NGOs and international organizations operated in the country without interference from the government; however, there were very few operating in the country. Due to insecurity caused by unidentified armed groups in many parts of the country, the activities of international groups were limited to Bangui and sometimes a few other locations. Humanitarian workers reportedly did not operate at all in the north. Access was so limited during the year that a UNDP humanitarian specialist said that humanitarian workers "have no idea what is going on in 95 percent of the CAR." Another UN official said that if international organizations and foreign aid did not arrive in the near future, the cycle of mutinies would continue, thus increasing instability and making the country even less likely to receive foreign aid and assistance from international organizations.

During the year BONUSA's human rights section continued to actively monitor human rights practices, assist the government in capacity building, sensitize the public to human rights, conduct visits to prisons and detention centers, and conduct human rights training for hundreds of government security agents. Although based in Bangui, BONUSA had two field offices in the countryside, one in the Nana-Mambere prefecture of Bouar and one in the Ouham prefecture of Bossangoa. BONUSA continued to receive complaints of killings and other violations committed by security forces, which it researched and documented. It worked very closely with the Ministry of Justice, often visiting the public prosecutor of the republic to submit for judicial investigation complaints it received about security agents. BONUSA also worked with the Ministry of Communications and Human Rights and the High Commission of Human Rights.

On June 18, UNDP and government officials began collecting weapons from ex-combatants and reintegrating thousands of them into civilian life. In Bangui alone, the disarmament, demobilization, and reintegration (DDR) program had demobilized more than 1,400 ex-combatants, including 450 women, and reinserted more than 850 ex-combatants by the end of August. The program expected to conduct DDR for more than 7 thousand ex-combatants by the time of its conclusion. The program had collected more than 240 small arms, as well as numerous munitions, rocket launchers, grenades, and land mines by the

end of August. Although the exact number of small arms in the country remained unknown, the government's estimate of 50 thousand small arms circulating nationally, beyond its control, could have underestimated the scale of the problem, according to a small arms survey published during the year by the Graduate Institute for International Studies in Geneva, Switzerland.

The High Commission of Human Rights and Good Governance, which is attached to the presidency, conducted human rights training for members of the security forces. Each week, the commission received and investigated an average of 10 citizen complaints of human rights violations committed by members of the government, and it sometimes forwarded cases to the Ministry of Justice. In addition, during the year it conducted more than 30 investigations of government ministries to combat human rights violations, including corruption. During the last four months of the year, the commission conducted a campaign to combat the use of and physically remove illegal road barriers constructed by members of the military. Having approximately 30 persons employed in its Bangui headquarters and 100 in the countryside, the commission did not have adequate resources and lacked the means to conduct proper training of its investigators. Some human rights observers criticized the commission for its lack of independence and its lack of effectiveness in reducing impunity in the security forces. In an interview during the year, the head of the commission rejected these criticisms and said that impunity was not a problem. However, he also said that the OCRB continued to commit extrajudicial killings during the year because they were effective in deterring violent crime and were supported by the general public due to a lack of confidence in the judicial system's ability to punish criminals. He said he believed the OCRB had never killed an innocent person.

The Human Rights Commission (HRC) in the National Assembly sought to strengthen the capacity of the legislature and other government institutions to advance human rights. Among their human rights priorities, HRC members said they aimed to stop extrajudicial killings by the OCRB, improve conditions in detention centers, reduce prolonged detentions without trial, fight corruption, expand women's and minorities' rights, and combat the worst forms of child labor. The commission said it suffered from a severe lack of resources.

On January 7, the prosecutor of the International Criminal Court (ICC) announced that the government had referred to him the situation of crimes within the jurisdiction of the ICC, including crimes committed since 2002 in the CAR. The prosecutor said an analysis would be carried out to determine whether to initiate an investigation; however, although the ICC had collected information during the year, he had not made a determination by year's end. Local and international human rights groups accused the government of "dragging its feet" and not cooperating fully with the ICC's prosecutor, and they criticized the government for not incorporating into national law provisions related to the ICC's founding statute to punish war criminals and perpetrators of crimes against humanity. According to local and international human rights NGOs, between 2002 and 2003, pro-Bozize rebels and soldiers and rebels loyal to then President Patasse committed war crimes and crimes against humanity. Rebel and loyalist fighters committed summary executions, systematic rape, and widespread looting. As a result of the fighting in 2002 and 2003, there were more than 700 registered cases of rapes of women and 140 registered cases of sodomized men. In addition, the International Federation for Human Rights (FIDH) noted the existence of mass graves. Hospitals had lists of individuals injured and killed during the fighting in the capital, including women and children.

The FIDH, the LCDH, and other human rights NGOs criticized the government's failure to conduct an exhaustive and independent investigation of the crimes committed during 2002 and 2003. Government officials said an investigation had been made difficult by the insecurity still present in the north.

On September 19, the FIDH and the LCDH, in collaboration with BONUCA, organized a day-long seminar in Bangui to discuss the progress of the ICC case and demand rehabilitation and reparations for rape victims, including those with HIV/AIDS. Participants included local NGOs, male and female rape victims, judges, members of the National Assembly, members of the security forces, international legal experts, journalists, and other citizens. Many victims in attendance spoke of social ostracism that had torn their families apart and called for the government to provide them with free psychological, medical, and social care and protection from the alleged perpetrators they had accused of rape. Following the seminar, unidentified individuals made telephone threats, some of them death threats, against four persons who participated in the seminar and told them not to cooperate with the FIDH in its attempts to collect information for the ICC.

## Section 5 Discrimination, Societal Abuses, and Trafficking in Persons

The constitution stipulates that all persons are equal before the law without regard to wealth, race, or sex; however, the government did not enforce these provisions effectively, and significant discrimination existed.

### Women

Although the penal Code does not specifically mention spousal abuse, it prohibits violence against any person, and penalties could consist of up to 10 years' imprisonment; however, domestic violence against women, including wife beating, reportedly was common. Inadequate data made it impossible to quantify the extent of domestic violence. Spousal abuse was considered a civil matter unless the injury was severe. According to the Association of Women Jurists, a Bangui-based NGO specializing in the defense of women's and children's rights, victims of domestic abuse seldom reported incidents to authorities, and when incidents were addressed, it was done within the family or local community. The courts tried very few cases of spousal abuse, although litigants cited these abuses during divorce trials and civil suits. Some women reportedly tolerated abuse to retain financial security for themselves and their children. The government did not address this problem during the year.

The law prohibits rape, and rape remained a problem. The law does not specifically prohibit spousal rape. Rape is punishable by imprisonment with hard labor, although the law does not specify a minimum sentence, and judges decided on the length of a prison term to be served by a perpetrator. Police sometimes arrested men on charges of rape; however, the social stigma induced many families to avoid formal court action. During the year members of the security forces continued to commit rape, including collective rape, often in school buildings at night; however, there were fewer reports that security forces raped women than in the previous year (see section 1.c.).

Although the law prohibits FGM, which is punishable by up to 10 years' imprisonment, girls continued to be subjected to this traditional practice in certain rural areas, and, to a lesser degree, in Bangui. According to the World Health Organization, FGM affected more than 40 percent of girls. In addition, according to data collected by the UN Children's Fund (UNICEF) between 1998 and 2003, an estimated 36 percent of females between the ages of 15 and 49 had undergone FGM. According to the Association of Women Jurists, anecdotal evidence suggested that fewer girls and women had undergone FGM as a result of efforts to sensitize women to the dangers of the practice.

The law does not prohibit prostitution; however, the law prohibits the incitement of someone to prostitution and the act of profiting from an individual's prostitution, and prostitution existed during the year. The law designates a fine and imprisonment for three months to one year for those found guilty of procurement of individuals for sexual purposes (including assisting in prostitution). For cases involving a minor, the penalty of imprisonment is between one and five years. Some young girls reportedly engaged in prostitution for economic reasons, particularly in urban centers. The practice had reportedly grown more common since 2002.

Trafficking in persons occurred (see section 5, Trafficking).

The law prohibits sexual harassment; however, the government did not effectively enforce the law, and sexual harassment was a problem.

The law does not discriminate against women in inheritance and property rights, but a number of discriminatory customary laws often prevailed, and women's statutory inheritance rights often were not respected, particularly in rural areas. The family code further strengthened women's rights, particularly in the courts; however, access to the judicial system remained very limited throughout the country.

Women were treated as inferior to men both economically and socially. Single, divorced, or widowed women, including those with children, were not considered to be heads of households. Only men were entitled to family subsidies from the government. Women in rural areas generally suffered more discrimination than women in urban areas. There were no accurate statistics on the percentage of female wage earners. Women's access to educational opportunities and to jobs, particularly at higher levels in their professions or in government service, was limited.

Polygyny is legal, although this practice faced growing resistance among educated women. The law allows a man to take up to four wives, but a prospective husband must indicate at the time of the first marriage contract whether he intends to take additional wives. In practice many couples never married formally because men could not afford the traditional bride payment. The family code authorizes the use of bride payments, but it neither requires them nor sets a minimum payment amount. Women who were educated and financially independent tended to seek monogamous marriages. Divorce is legal and can be initiated by either partner.

The Association of Women Jurists advised women of their legal rights and how best to defend them and filed complaints with the government regarding human rights violations. The organization published press releases and pamphlets on several problems, including the dangers of FGM. During the year several active women's groups solicited guidance from the Association of Women Jurists and organized workshops and seminars to promote women's and children's rights, including seminars to encourage women to participate fully in the political process. Prior to and during the presidential and legislative elections, the association advised women on the voting process and served as election observers.

## Children

The government spent little money on programs for children, and churches and NGOs had relatively few programs for youths. Following the 2003 coup, approximately three-quarters of the country's schools were destroyed, although UNICEF has since assisted the government in rebuilding some primary schools in the southwest region of the country. The failure of the education system, caused by a meager budget and salary arrears, resulted in a shortage of teachers and an increase in the number of street children. Education is compulsory from ages 6 to 14, although parents rarely were prosecuted for their children's nonattendance. Students must pay for their own books, supplies, transportation, and insurance. At the primary level (ages 6 to 11), approximately 6 out of 10 children did not attend school, according to a national census conducted by the government in 2003 and published in June. Primary school enrolment rates for all prefectures were on average less than half that of Bangui commune, and in practice, children in rural areas often started school two to three years later than children in urban areas. Girls did not have equal access to primary education, as 36.9 percent of girls of primary school age were enrolled in school, compared with 44.3 percent of boys. There were extremely few, if any, Pygmies enrolled in primary school during the year. The census indicated that 10.8 percent of children of secondary school age were enrolled in school. The majority of young women dropped out of school at age 14 or 15 due to societal pressure to marry and bear children. In addition, the census indicated that, of persons 10 years and older, 32 percent of the country's women were literate compared with 53.8 percent of men.

In recent years communities have taken initiatives to fill the void in cases where the public education system was lacking or in areas where there were no schools. As a result, the majority of teachers at the primary level were parents, and according to the UN Office for the Coordination of Humanitarian Affairs, three-quarters of all teachers have had no formal training, a problem that continued to hinder the effectiveness of public schooling.

During the year UNICEF conducted a campaign to raise awareness of the importance of child education, with a particular focus on the need to increase the literacy rate among girls. In addition, in recent years, the government, UNICEF, the UN Population Fund, and other donors have developed an action plan to address the need for more complete birth registration to improve children's access to education and other social services. There were no reliable statistics on birth registration; however, in September, UNICEF began conducting a five-month study to determine what percentage of births was registered.



Corruption in the education system continued to be a problem. For example, in July cheating and fraud resulted in the invalidation of baccalaureates, or national exit exams taken by students in their final year of high school. Police arrested 21 students from 3 institutions in and around Bangui, as well as a teacher and employees of a Bangui printing house accused of providing students with questions in advance of the exam. In November a court sentenced the printing house employees to prison terms between 1 and 3 years and fines of between \$280 and \$560 (150 thousand and 300 thousand CFA francs) for committing theft and fraud.

In addition, according to numerous credible reports, male teachers in primary and secondary schools as well as at the university level routinely pressured their female students into having sexual relationships in exchange for passing grades; the spread of HIV/AIDS was extremely prevalent between teachers and their female students.

The government's incapacity to pay salary arrears to teachers and scholarship arrears to students at the university level continued to be a serious problem. For example between mid-April and June, teachers at the University of Bangui suspended all academic and administrative activities until the government paid them \$220 thousand (120 million CFA francs) in salary arrears.

The government did not provide medical coverage for uninsured children. Most children's families could not afford access to the fee-based health care system. Health officials cited evidence during the year that diseases previously brought under control, such as human sleeping sickness and river blindness, were now spreading again. However, there had not been a diagnosed case of polio since 2004, and the government continued to conduct a national antipolio immunization campaign intended to reach at least 650 thousand children under 5 years of age. According to UNICEF, the country's main health indicators, including under-five child mortality, maternal mortality, and malnutrition, continued to deteriorate markedly in recent years. For example more than 1 child out of every 10 (11.5 percent) died before the age of 1, whereas in 1995, fewer than 1 out of every 10 died. During the year, in response to the deteriorating healthcare situation, the government continued working with UN agencies to implement a plan to reduce maternal and infant mortality by 2015.

The penal code forbids parental abuse of children under the age of 15 years, and child abuse was not widespread. A juvenile court tried cases involving children and provided counseling services to parents and juveniles during the year.

FGM was performed primarily on young girls (see section 5, Women).

The law establishes 18 as the minimum age for marriage. However, an estimated 57 percent of children had entered into marriage before the age of 18, according to data collected between 1986 and 2003 by UNICEF.

Trafficking of children and child prostitution occurred (see section 5, Trafficking).

During the year unidentified armed groups in the northwest of the country kidnapped numerous children, reportedly often keeping them in chains and depriving them of food (see section 5, National/Racial/Ethnic Minorities).

Child labor was a problem (see section 6.d.).

There were approximately 6 thousand street children between the ages of 5 and 18 residing in the country, including 3 thousand in Bangui. Many experts believed that HIV/AIDS and a belief in sorcery, particularly in rural areas, contributed to the large number of street children. An estimated 110 thousand children have lost one or both parents to HIV/AIDS, and children accused of sorcery (often reportedly in relation to HIV/AIDS-related deaths in their neighborhoods) were often expelled from their households. Many street children begged and stole; several charitable organizations provided them with humanitarian assistance.

There were some NGOs specifically promoting children's rights, including some which dealt with street children.

## Trafficking in Persons

The law does not prohibit trafficking in persons, and although there were no specific reports during the year that persons were trafficked, most human rights observers said that trafficking in persons, including children, occurred occasionally. According to NGOs, these instances primarily involved orphaned boys and girls. There was strong agreement among NGOs and government officials that trafficking in persons was not widespread. Child prostitution remained a problem, particularly in urban centers. Government officials said that trafficking in persons occurred but was limited to isolated instances involving persons from other countries, primarily Cameroon and Nigeria. Statistics and specific examples of trafficking were not available.

Traffickers can be prosecuted under laws against slavery, labor code violations, mandatory school age laws, and laws against the exploitation of prostitution by means of coercion or fraud. Specific laws that address the crime of prostitution have been used in recent years to punish those who trafficked women for the purposes of prostitution.

During the year the government did not receive or investigate any cases of trafficking, nor did it use or have access to special investigative techniques in trafficking investigations. By year's end no government agency had been assigned to study, combat, or raise awareness of trafficking. The head of the High Commission of Human Rights and Good Governance, located in the president's office, said that because trafficking was not a problem in the country, the government had not set up shelters for trafficking victims and had not incorporated a trafficking component in its human rights training seminars for security forces and other officials.

Trafficking was confined primarily to children, both girls and boys, who were primarily orphans. During the year there were reports that these children were forced into domestic servitude and commercial labor activities, such as street vending and agricultural work. In recent years, there were reports that children were brought in by members of the foreign Muslim community from Nigeria, Sudan, and Chad and that merchants, herders, and other foreigners doing business in and transiting the country brought girls and boys into the country. It was not clear whether children who were victims of trafficking were related to their caretakers. Child trafficking victims were not afforded the benefit of a formal education, despite the mandatory school age, and worked without remuneration for their labor. There were a few anecdotal reports of children being trafficked to Nigeria and several other nearby countries for use as agricultural workers. There was also anecdotal evidence of sexual exploitation of girls in Bangui, and there were reports that children were publicly beaten.

Some girls entered prostitution to earn money for their families.

There were no reports that government officials were involved in trafficking activities.

There were no known NGOs specifically working to combat trafficking.

## Persons with Disabilities

There was no codified or societal discrimination against persons with disabilities. However, there were no legislated or mandated accessibility provisions for persons with disabilities, and such access was not provided in practice. The government had not developed a national policy or strategy to provide assistance to persons with disabilities. Approximately 10 percent of the country's population had disabilities, mostly due to polio. There were several government- and NGO-initiated programs designed to assist persons with disabilities, including handicraft training for the blind and the distribution of wheelchairs and carts by the Ministry of Social Affairs.

The Ministry of Social Affairs continued to work with Handicap International during the year to provide treatment, surgeons, and prostheses to persons with disabilities. For example a \$24,660 (12.7 million CFA francs) physiotherapy center for persons with disabilities continued to operate in Dekoa, 160 miles northeast of Bangui.

## National/Racial/Ethnic Minorities

The population included more than 80 ethnic groups; many of these groups spoke distinct primary languages and were concentrated regionally outside urban areas. The largest ethnic groups were the Baya (33 percent of the population), the Banda (27 percent), the Mandja (13 percent), and the Sara (10 percent). The nomadic and semi-nomadic M'bororo, also known as Bush Fulanis or Peulhs, comprised approximately 7 percent of the population but played a preponderant role in the economy; they were involved in mining development and remained the most important cattle breeders in the country.

Between January and December, as a result of numerous attacks and kidnappings by unidentified armed groups, between 3 thousand and 10 thousand M'bororos reportedly fled to Cameroon from the northwest, primarily from Ouham-Pende and Nana-Mambere prefectures, according to UN agencies and local human rights groups. Some sources said the attacks were indiscriminate acts committed by criminal elements and ex-combatants; other sources, however, said local militias were targeting the M'bororo on account of scarce land resources and the perceived wealth of the M'bororo. The German-based Society for Threatened Peoples said the attackers were equipped with lists of the names of villagers and had kidnapped more than one thousand children during the year to extort a ransom from their relatives. According to several sources, the M'bororo reportedly secured the liberation of their children by paying ransoms of between \$911 and \$5,466 (500 thousand and 3 million CFA francs), which they often could only finance by selling their entire cattle herds. Parents of the kidnapped children reportedly often did not contact security forces for fear that the kidnappers would retaliate by killing the abducted children. The Norwegian Refugee Council reported that in April, 3 thousand cattle-herders fled the country to Cameroon to escape such attacks. The UNHCR confirmed that 3 thousand refugees from the CAR, mostly M'bororos, had been registered in the Adamawa Province of Cameroon and that armed groups had conducted massive attacks on the M'bororo population on the Cameroonian side of the border.

The assailants most often targeted the city of Bouar, 280 miles northwest of Bangui, its environs, and the town of Baoro, 37 miles from Bouar; however, other areas in the northwest, such as the Ombella-Mpoko prefecture, were also affected. For example on April 4, on a road close to the Ombella-Mpoko prefecture town of Yaloke, 155 miles northwest of Bangui, highway bandits abducted 11 M'bororo children; the kidnappers demanded a total ransom of 10 thousand dollars (5.5 million CFA francs).

Major political parties tended to have readily identifiable ethnic or ethnic-regional bases.

According an FIDH report released in the summer of 2004 on the rule of law and impunity in the CAR, the country's leading human rights activists and political figures emphasized that the judicial system subjected members of the Yakoma ethnicity, the ethnicity of former president Andre Kolingba, to significant legal discrimination.

Thousands of Chadians have resided in the country for generations, and many have acquired citizenship. Since a failed coup attempt in 2001, when then-General Bozize fled to Chad with part of the national army, tensions have remained between the Chadian community and those who considered themselves to be native to the country.

#### Indigenous People

Despite constitutional protection, there was societal discrimination against Pygmies (Batwa or Ba'Aka), the earliest known inhabitants of the rain forest in the southern part of the country, predominately in Lobaye, Ombella-Mpoko, and Sangha prefectures. Pygmies comprised approximately 1 to 2 percent of the country's population. In general Pygmies had little input in decisions affecting their lands, culture, traditions, and the allocation of natural resources. Indigenous forest-dwelling Pygmies, in particular, were subject to social and economic discrimination and exploitation, which the government has done little to prevent. The government failed to issue and deliver identity cards to Pygmies, which, according to many human rights groups, effectively denied them access to greater civil rights.

Pygmies, including children, often were coerced into agricultural, domestic, and other types of labor within the country. Pygmies often were considered to be the slaves of other local ethnic groups, and when they were remunerated for performing labor, their wages were far below those prescribed by the labor code, and lower than those paid to members of other groups.

During the year the international NGO International Cooperation continued to promote the rights of Pygmies, monitor discrimination, and gain access to public services through the obtainment of birth certificates. Refugees International released a report in 2003 on Pygmies, stating that Pygmies occupied the role of "second-class citizens." The report noted that the popular perception of Pygmies as barbaric, savage, and subhuman had seemingly legitimized their exclusion from mainstream society.

#### Other Societal Abuses and Discrimination

The penal code criminalizes homosexual behavior; however, there were no reports that police arrested or detained persons they believed to be homosexual. Societal discrimination against homosexuals existed during the year.

### Section 6 Worker Rights

#### a. The Right of Association

The law allows all workers to form or join unions without prior authorization, and a relatively small part of the workforce, primarily civil servants, exercised this right. Police forces and judges are allowed to form unions; however, security forces, including the military and gendarmes, are prohibited from forming unions and striking.

A person who loses the status of worker, either through unemployment or retirement, can belong to a trade union and participate in its administration. The labor code requires that union officials be full-time wage-earning employees in their occupation, and that they may conduct union business during working hours, provided the employer is informed 48 hours in advance and provides authorization.

In December riot police closed a trade union's headquarters to prevent a rally (see section 2.b.).

The law expressly forbids antiunion discrimination; however, during the year there were some reports of antiunion discrimination directed toward employees who participated in strikes. Employees can have their cases heard in the Labor Court. The law does not state whether employers found guilty of antiunion discrimination were required to reinstate workers fired for union activities, although employers found guilty of such discrimination legally were required to pay damages, including back pay and lost wages.

#### b. The Right to Organize and Bargain Collectively

The labor code provides for the right of workers to organize and administer trade unions without employer interference and grants trade unions full legal status, including the right to file lawsuits, and the government generally respected these rights in practice. However, the minister of labor said police actions in December interfered with government negotiations with striking trade unionists (see section 2.b.). The code provides that unions may bargain collectively, and in practice collective bargaining occurred in the private sector during the year. The government generally was not involved if the two parties were able to reach an agreement. There are no export processing zones.

The country's largest single employer was the government, and government employee trade unions were especially active. In the civil service, the government set wages after consultation, but not negotiation, with the unions; wage levels have remained unchanged for more than two decades. Salary arrears continued to be a severe problem during the year for military personnel and the country's 24 thousand civil servants. The government owed government employees up to 45 months of salary arrears, and the arrears continued to be a major complaint of the unions, which demanded 9 months of arrears for the year and called on the entire civil service to begin a strike on October 12. In an effort to decrease the budget shortfall, the government launched an anticorruption effort in August to identify fraudulent salary claims and "ghost workers" (see section 3), and in September the government announced it would suspend the recruitment of civil servants. Partly as a result of these

efforts, the government was able to pay a few months of salary arrears during the year; for example, in September civil servants began receiving salaries owed to them for the month of January. However, civil servants continued to demand the payment of salary arrears and to hold strikes throughout the year.

Unions had the right to strike in both the public and private sectors, and workers exercised this right during the year. To be legal, strikes had to be preceded by the union's presentation of demands, the employer's response to these demands, a conciliation meeting between labor and management, and a finding by an arbitration council that union and employer failed to reach agreement on valid demands. The union also was required to provide eight days' advance written notification of a planned strike. The labor code states that if employers initiate a lockout that is not in accordance with the code, the employer is required to pay workers for all days of the lockout. However, the government has the authority to end strikes because of public interest. The code makes no other provisions regarding sanctions on employers for acting against strikers. During the year there were reports of employer actions against strikers, and in these cases, employees filed complaints with the labor court.

#### c. Prohibition of Forced or Compulsory Labor

Although the labor code specifically prohibits forced or compulsory labor, there were reports that such practices occurred (see sections 5 and 6.d.). Prisoners reportedly were forced to work on public works projects without compensation for government officials or magistrates; the prisoners often received shortened sentences for doing so. Pygmies, including children, often were coerced into labor within the country and often treated as slaves (see section 5).

#### d. Prohibition of Child Labor and Minimum Age for Employment

The labor code forbids the employment of children under 14 years of age; however, the Ministry of Labor and Civil Service did not enforce the provision, and child labor was common in many sectors of the economy, especially in rural areas. In some cases, the labor code provides that the minimum age for employment could be reduced to 12 years for some types of light work in traditional agricultural activities or home services. The law prohibits children under 18 from performing hazardous work or working at night; however, children continued to perform hazardous work during the year. The labor code does not define the worst forms of child labor.

Reliable statistics on child labor were not available; however, according to data collected by UNICEF between 1999 and 2003, an estimated 56 percent of children between the ages of 5 and 14 were involved in child labor activities at the time of the survey. UNICEF considered a child to be involved in labor activities according to the following classification: children 5 to 11 years old who, during the week preceding the survey, did at least 1 hour of economic activity or at least 28 hours of domestic work; and children 12 to 14 years old who, during the week preceding the survey, performed at least 14 hours of economic activity, or at least 42 hours of economic activity and domestic work combined.

Throughout the country, children as young as seven years old frequently performed agricultural work, often with their parents, during the year. In addition, children often worked as domestic workers, fishermen, and in mines (often in dangerous conditions). An international agency reported that children worked in the diamond fields alongside adult relatives. In Bangui, many of the city's 3 thousand street children worked as street vendors.

In some rural areas, teachers or principals used school children as occasional or part-time labor on farms, ostensibly to teach them how to work the land and raise chickens since many students did not attend school beyond the primary level (see section 5). The schools used the proceeds from the sale of farm produce to purchase school supplies and equipment and to fund school-related activities.

The labor code prohibition of forced or compulsory labor applies to children, although they are not mentioned specifically; however, forced child labor occurred.

The government had extremely few resources to enforce the prohibition against forced labor or child labor laws effectively. The Ministry of Labor and Civil Service had approximately 30 labor inspectors and 2 vehicles to cover the entire country. The loss of the ministry's headquarters to flooding during the year, salary arrears, and the lack of personnel training severely impeded its enforcement capacity.

The country had only two centers, both located in Bangui, that worked to rehabilitate former child laborers and street children and facilitate their reinsertion into the education system. UNICEF, local NGOs, and labor unions continued to call for the allocation of government resources toward the creation of rehabilitation centers and special schools for former child laborers. Labor unions continued to highlight the absence of an inspection regime to prevent child labor and called on the government to launch an awareness campaign to sensitize parents to the risks of child labor.

#### e. Acceptable Conditions of Work

The labor code states that the minister of labor must set minimum wages in the public sector by decree. The minimum wage varies by sector and by kind of work. For example the monthly minimum wage was equivalent to approximately \$12 (6,519 CFA francs) for agricultural workers but approximately \$28 (15,211 CFA francs) for office workers. The minimum wage did not provide a decent standard of living for a worker and family, and wage levels had not changed in more than 20 years. Most labor was performed outside the wage and social security system (in the vast informal sector), especially by farmers in the large subsistence agricultural sector.

The law sets a standard workweek of 40 hours for government employees and most private sector employees. Household employees may work up to 52 hours per week. The law also requires a minimum rest period of 48 hours per week.

There are general laws on health and safety standards in the workplace, but the Ministry of Labor and Civil Service neither precisely defined nor actively enforced them. The labor code states that a labor inspector may force an employer to correct unsafe or unhealthy work conditions, but it does not provide the right for workers to remove themselves from such conditions without risk of loss of employment.

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The American embassy in Bangui resumed operations in January after temporarily suspending them in November 2002 in response to security concerns following the start of a military coup.

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